

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING
COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT
ALTER THE ACTUAL DISTRICT RECORD**

Counterfactual Ordinary Mandate-Release Order

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Entered July 30, 2026

The Court entered its opinion and judgment on July 9, 2026. No party filed a petition for panel rehearing or rehearing en banc by the July 23 deadline, and no timely motion stayed issuance. Under the ordinary operation of Federal Rule of Appellate Procedure 41, the mandate is due seven days after expiration of the rehearing period.

The clerk is directed to release the mandate on July 30, 2026. The mandate shall transmit the judgment's exact two components: affirmance of mitigation JMOL and affirmance of the \$2,700,000 amended judgment. It shall contain no remand instruction and no ruling about the dormant conditional Rule 59 determination or the possible scope of a financial retrial.

This release order belongs exclusively to the never-filed docket. It does not establish that an appellate judgment, rehearing period, or mandate existed in the actual litigation. The actual Rule 50(a) sources remain causation-only and are not altered by the preservation premise or by expiration of this branch deadline.

Electronic notice shall issue to Maya Holt, Jonas Bell, Eli Mercer, and Tara Webb. The clerk shall preserve both required warnings when transmitting the mandate and shall maintain segregation from the distinct rehearing, stay-denial, and stay-grant alternatives described elsewhere in the synthetic corpus.